

Memo

To: Honorable City Council
From: Brian N. Kozak, Chief of Police
Date: May 8, 2013
Re: Alarm Ordinance Revision Staff Report

Summary:

The Police Department recommends amendments to the alarm ordinance (Chapter 8.08) to add requirements for call verification, graduated fees for false alarms and ability to suspend a permit when the alarm has been designated as unreliable. The revisions will reduce false alarms, making police service more efficient and cost effective for the citizens of Cheyenne.

Background:

In 2012 the Cheyenne Police Department responded to 1,863 alarm calls, which had the following dispositions:

False alarms	1,442
Canceled after dispatched	352
Canceled prior to dispatch	47
Improper use	5
Excused due to weather	7
Valid	10
Robbery	2
Child Abduction	1
Burglary	1
Suspicious Activity	4
Vandalism	2

The below chart displays the number of repeat alarm calls per alarm holder in 2012:

Number of calls per individual alarm holder	Number of alarm holders who had alarm calls	Total alarm calls for service
1	484	484
2	177	354
3	75	225
4	35	132

5	18	90
6	11	66
7	18	126
8	2	24
9	8	72
10	5	50
11	4	44
12	3	36
13	2	26
14	2	28
15	1	15
16	1	16
18	2	36
19	1	19
20	1	20
Total		1,863

False alarms represented 96.5% of all alarm calls and accounted for nearly 400 hours of police service at a minimum expense of \$20,000 to the taxpayers. The time spent responding to false alarms may cause an extended response to a real emergency.

The current ordinance does not require call verification by the alarm company prior to calling the police. Thus, the Cheyenne Police Department began a response to 352 calls in 2012 before being cancelled. Currently, alarm companies call the police then call the alarm holder to confirm the need for the police to respond. Call verification would require the alarm company to call the alarm holder before calling the police; thus, eliminating 352 police calls for service.

Currently, there is no coordination and verification of alarm permits with police calls. Therefore, the police respond to alarms that may not be licensed in the City of Cheyenne. The City has 1,026 alarm permits on file. An evaluation of other cities of similar size revealed that Cheyenne may very well have in excess of 2,000 alarms. Important alarm holder information, which the police may need if an actual crime was discovered, is not accessible to the police for those alarms that are not licensed.

Currently, the City collects an annual \$25 permit fee from each alarm holder, which totals approximately \$25,000 a year. The alarm holder information is then entered into three separate computer systems by three separate employees. A majority of the information does not change from year to year; however, it takes valuable time to reenter the information year after year.

Under the current ordinance the City may charge a fee of \$100 for the sixth false alarm within in year. An evaluation of the 2012 false alarms revealed that the City could have collected \$25,000 in false alarm fees. Since, there is no consistent coordination or accountability in collection, the City collects on average \$4,000 to \$12,000 a year in false alarm fees.

There is no provision in the current ordinance to suspend a permit when the alarm is deemed to be unreliable. Thus, the police continue to respond to undependable alarms at great expense to the City. In addition, officers may become complacent when repeatedly responding to the same undependable alarm, which can have deadly results if an actual crime was in progress.

Discussion:

The National Burglary and Fire Alarm Association and False Alarm Reduction Association recommend ordinances as the one being proposed. The alarm industry strives to produce reliable service; thus, they support graduated fees for false alarms, call verification and no response to alarms deemed as unreliable. These practices are also supported by the International Association of Chiefs of Police.

The proposed revisions are as follows:

8.08.020

- Lifetime permit
 - A majority of permit holders are responsible and do not cause any police resources to be wasted. Thus, these people would be rewarded by not being required to renew their permit on an annual basis, which takes staff time to update City records.
- Requirement to update alarm holder information with a minimum of two phone numbers for police emergency contact.

8.08.025

- Those who currently have a permit will receive the lifetime permit for the current renew fee of \$25.

8.08.030

- The Chief of Police or his designee may revoke a permit with proper notice for nonpayment of fees or excessive false alarms.
 - The Police Department would appoint an alarm administrator, whose primary job will be to work with the alarm holders to reduce false alarms. Permit revocation will be the last resort and only when the permittee fails to take any action to prevent future false alarms.

- The permittee may appeal to a city council panel as appointed by the Council President.
- The permit may be reinstated at any time when the permittee displays an attempt to solve the problem.
- If a permit is revoked, the police will not respond (after proper notice) to that address for unreliable alarm activation unless there is a verified crime, since the alarm has been proven to be defective. The police will always respond to a panic or hold-up alarms.

8.08.040

- The following graduated fees **may** be implemented for false alarms within the calendar year:
 - 1st response – no action
 - 2nd response – The alarm administrator will mail a letter to the alarm holder, to request a written response as to what was done to prevent future false alarms and to warn that a 3rd response will result in a fee.
 - 3rd response - \$100 fee
 - The alarm holder may complete online alarm training to avoid the fee.
 - 4th response - \$200 fee
 - The Cheyenne Police Citizens on Patrol will attempt to make contact with the alarm holder to offer in person alarm training.
 - 5th response - \$400 fee
 - 6th and subsequent response - \$400 fee or revocation of permit
- ***The primary goal is to reduce false alarms and not to collect revenue. A fee may not be applied to alarm holders who show that they have taken steps to prevent false alarms.***

8.08.055

- Call verification
 - The alarm monitoring company shall attempt to reach the alarm holder prior to calling the police unless it is a panic or hold-up alarm.
- Alarm companies shall train alarm holders how to use the alarm and advise them of the permit requirement.

The Cheyenne Police Department recently updated its computer system to track the provisions of this ordinance. Upon responding to an alarm call the alarm administrator will insure that the alarm holder has a permit. Assessed fees will be forwarded to the City Treasurer for collection and recording. Additionally, the computer revision has reduced the number of employees to complete data entry from three down to two.

Fiscal Considerations:

If the false alarm fees as proposed in this ordinance were applied to the 2012 calls for service to following would have been collected:

189 alarms with 3 responses x \$100	=	\$ 18,900
114 alarms with 4 responses x \$200	=	\$ 22,800
79 alarms with 5 responses x \$400	=	\$ 31,600
<u>All other responses above 5 x \$400</u>	=	<u>\$105,600</u> (Assuming no revocations occurred)
False alarm fee total		\$178,900

However, the purpose of this ordinance is to reduce false alarms and improve police efficiency. Thus, it is estimated that approximately \$50,000 in fees will be collected in the first year and this number will decrease each additional year the ordinance is in effect.

In addition, supplementary fines and permit fees would be collected for those alarm holders who do not have permits.

Other Considerations:

The proposed ordinance will have little effect on Cheyenne homeowners since a majority of the problems occur with businesses, as the following 2012 data reflects:

Only 16 residences had four or more false alarms; however, they accounted for 77 calls for service.

Seventy-seven businesses had four or more false alarms and accounted for 589 calls for service.

Five schools required four or more alarm responses, accounting for 55 calls for service.

Twelve government buildings accounted for 82 calls for service and five churches required 34 alarm calls for service.

Very few alarm holders cause a majority of the false alarm problems for the Cheyenne Police Department. If this ordinance is successful in eliminating four or more calls for service by an alarm holder it would eliminate 800 calls a year.

Recommendation:

In 2012 the Cheyenne Police Department responded to alarms at an average of 310 per 10,000 residents. Other cities that have implemented call verification, false alarm fees and permit revocation have seen over a 50% reduction in calls. For example; Boulder, CO

averages 140 calls per 10,000 residents, Fremont, CA averages 55 calls per 10,000 residents, and Lakewood, CO averages 125 calls per 10,000 residents.

The Cheyenne Police Department cannot continue its current level of service with an increasing demand on resources. It has to become efficient in providing services where they are needed. Thus, staff recommends the passage of the ordinance without any recommendation on the fees that should be applied within the ordinance.